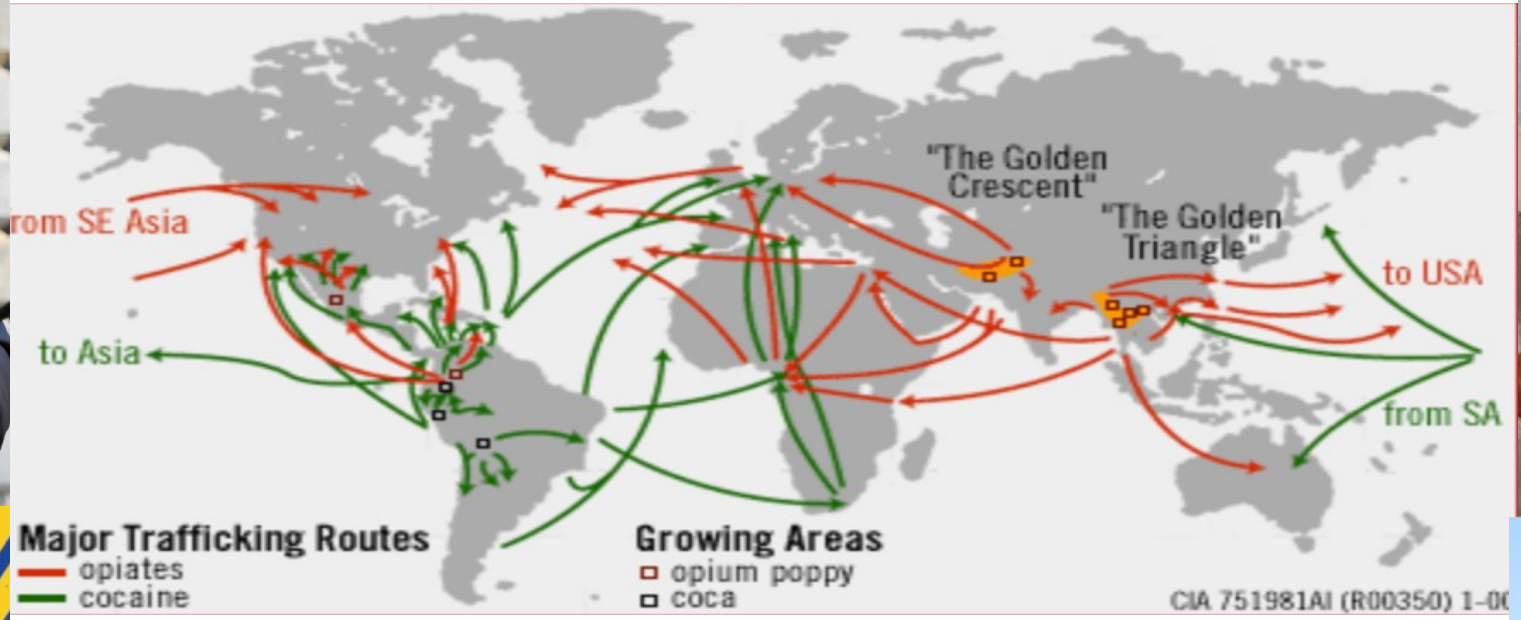
Ch. 5.5: Home Affairs: Freedom, Security and Justice.













Home Affairs: Freedom, Security and Justice.

An area of freedom, security and justice:

- With the Lisbon Treaty the area was fully integrated into Community system and the EU can now make binding decisions with a qualified majority voting.
- **Focus of activities:**
- Fundamental Rights.
- Joint fight against terrorism.
- Cooperation between police and law-enforcers from different countries.
- Coordinated asylum and immigration policies.
- **Practical achievements**:
- Elimination of border controls between the „Schengen“ countries.
- Europol for co-operation of police forces.
- Eurojust for co-operation between prosecutors and civil law cooperation in areas like extradition, family law, criminal justice…
- Frontex for co-operation between border control authorities.
- First steps towards a common asylum policy.

The Schengen Agreement.

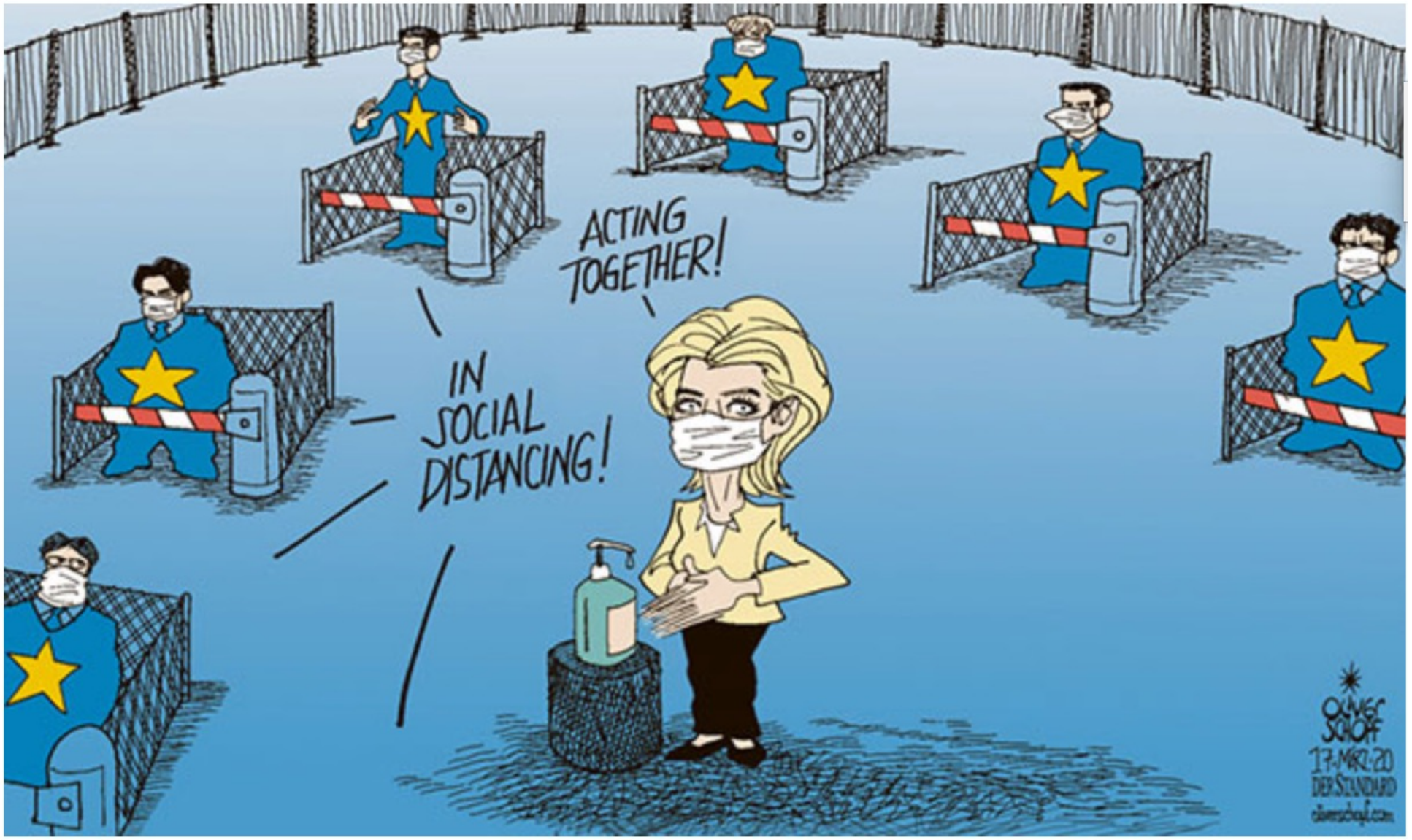
- No police or customs checks at borders between all EU countries except Ireland and Cyprus.
  25 EU countries plus CH, Liechtenstein, NO and Iceland.
- 3,5 million internal border crossings each day!
- Schengen Information System, a common database for police and immigration authorities.
- Controls strengthened at EU external borders: EES (Entry/Exit System) in operation since 2026 based on biometric data, but still massive irregular immigration (Greece/Turkey, EU Mediterranean countries/North Africa and South America).



Enlargement of the Schengen area to most CEE-States, 21 December 2007.

- September 2015: temporary collapse of the Schengen system due to massive migration from Near-East and Africa.
- 2020/2021: Corona crisis led to extensive border controls and closures.
- Still frequent border controls between Schengen countries to reduce illegal migration (Germany 2025/26): small effect, but a nuisance for travellers.

Welcome to the European Union!



Due to the coronavirus (Covid-19) the European Union decides to close all borders

Source: Oliver Schopf

EUROPOL.

- **European Police Office (Europol, 1999, The Hague)** is the European Union's criminal intelligence agency covering all 27 member states.
- 1.700 staff
- Europol supports the national police systems and cooperates with third countries and Interpol.
- Europol with 600 staff is a multi-disciplinary agency, comprising not only regular police officers but staff members from the member states' customs and immigration services, border and financial police.



- **Most important international criminal activities:**
  - -drug trafficking
  - -illicit immigration
  - -terrorism
  - -human trafficking
  - -forgery
  - -money laundering
  - -improper use of the internet (cybercrime)

5.000 criminal groups active in EU, 821 of these fall under „organised crime“ (Europol 2024).
13.000 professional cyber attacks on organisations in EU per day (ENISA 2025).

Organized Criminality in and around the EU.



- **Europol assessment of major trans-border criminal activities affecting the European Union:**
  - Organized crime centered in Balkan area, Eastern Europe, Southern Europe.
  - Major routes for smuggling of drugs and people are from Near East, North Africa, South America, Far East.
  - Whitewashing of “black money” common.
  - False luxury articles (Rolex, Gucci…..) produced in SE-Asia.
  - Illegal migration organized by professional smuggler has become the normal way of irregular entry into the EU.

Source: Die Presse 5 May 2011

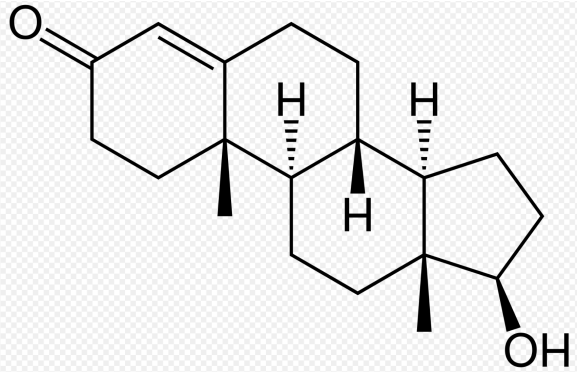
The Issue of Illegal Drugs.

- **Main drugs:**
  - cocaine (coca plant): production of pure cocaine 1.000 tons/y
  - heroin and other opiates (poppies): production 10.000 tons/year
  - marijuana (cannabis plant): 50.000 tons/yr
  - new synthetic drugs (LSD, crystal meth, fentanyl.... 250 substances now) – becoming more and more dangerous!
- **Business volume**:
  - global: 400 bio $/yr, > 300 million consumers
  - EU: 30 bio EUR (2025)
- **Main producers:**
  - cocaine: Columbia, Peru, Bolivia
  - heroin: Afghanistan, China, Mexico
  - synthetic drugs: USA, China, Belgium, Netherlands.....
- **Consumers:**
  - Globally 250 million cannabis, 25 mio cocaine, 60 opiods mio (like heroin), 50 mio synthetic drugs, annual growth rate of drug consumption > 10%.
  - Austria: annual business volume 5 billion EUR, 2,8 tons of drugs seized by police in 2025, 30.000 people heavily dependent on drugs, 257 deaths in 2025 (comparsion traffic 397).

Source: UNODC 2026

The Fight against Doping in Sports.

- **Europol action in cooperation with police authorities in the USA and Columbia in July 2019:**
- Operation “Viribus” involving 33 countries led to the blowing-up of 17 criminal groups trading with anabolics (steroids – usually synthetically produced derivatives of the hormone testosterone).
- Seizure of 3,8 million units of doping substances.
- Initiation of criminal procedures against 839 persons (including 234 arrests).
- In the international distribution center in Vienna 22 tons of steroids were seized (value 20 million EUR).
- Origin of these substances: India
- The delivery system was uncovered: end users mostly fitness centers.



Medical effects of these substances: enhance muscle build-up, damages of liver and kidneys, increased risk of heart attack.

EUROJUST.

- **Eurojust** founded 2002 and based in The Hague is an agency of the European Union (EU) dealing with judicial co-operation.
- 360 staff
- Eurojust is a first step towards a ‘European judicial area’.
- It is composed of national prosecutors, magistrates or police officers of equivalent competence from each of the EU states.
- Its task is to enhance the effectiveness of the national authorities when they are dealing with the investigation and prosecution of cross-border and organized crime (30 % of all crimes).
- Eurojust is seen as the future European Public Prosecutor's office, the creation of which is provided for under the Lisbon Treaty.



- **Harmonization of law in the European Union:**
  - The European arrest warrant.
  - Civil law - legislation to facilitate the application of court rulings in cross-border cases involving divorce, separation, child custody and maintenance claims so that judgments in one country are applicable in another.

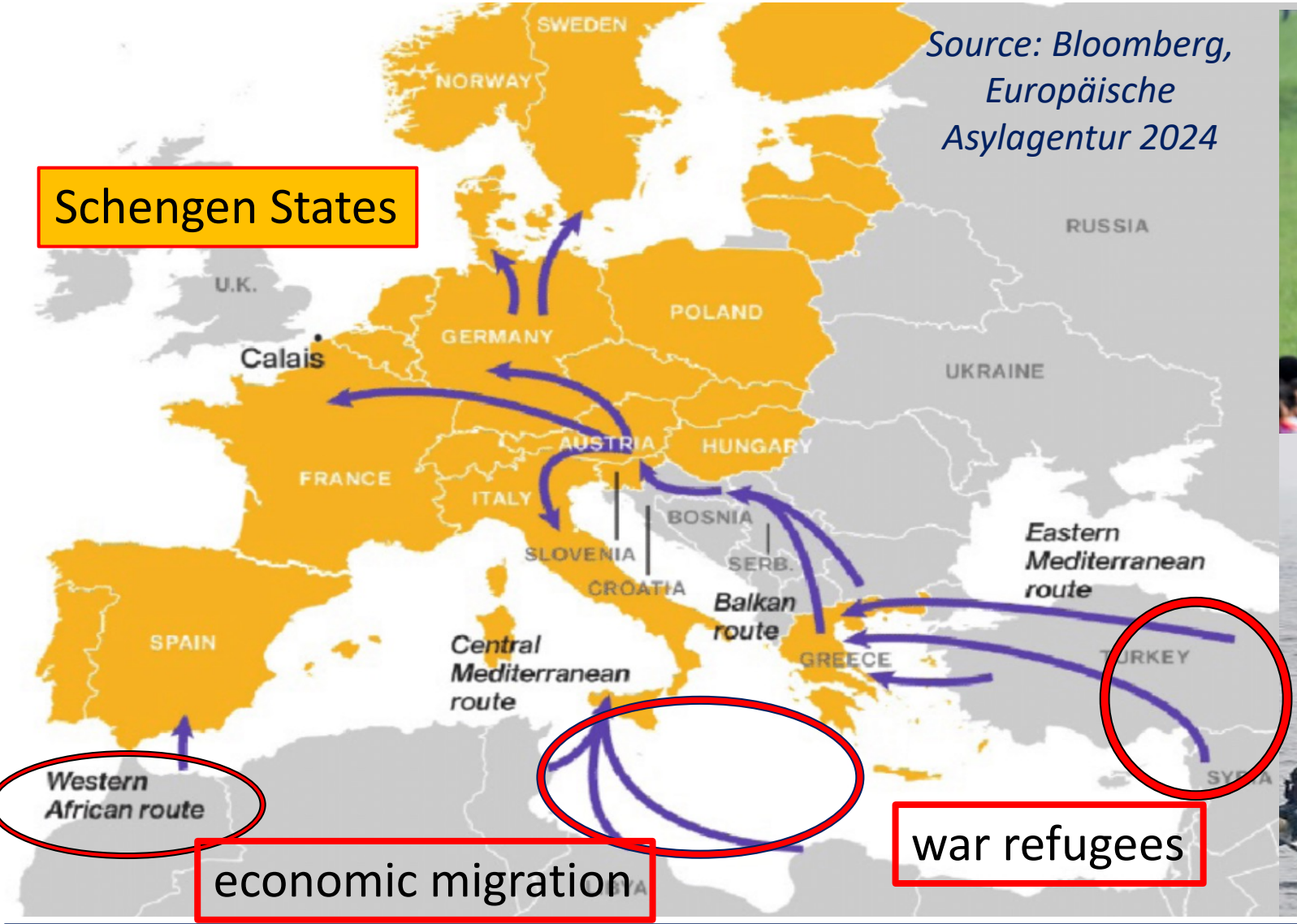
Asylum and Immigration Policy.

- **The EU is aiming at the development of a common asylum and immigration policy but a a matter of principle immigration and asylum issues are handled exclusively by the Member States.**
- **Common positions and actions of the EU Member States are enacted by the European Council.**
- So far EU governments have agreed to harmonize their rules, but up to now only some measures were adopted, such as minimum standards for the admission of asylum-seekers and for the granting of refugee status.
- **Dublin Agreement:**

– Immigrants must seek asylum in the first EU Member State they enter.

- Number of asylum seekers: typically 200.000 p.a. till 2010, then increase.
- Dublin system collapsed in 2015 when a huge numbers of refugees from the Near-East entered Greece, the country was not able to handle registration and the refugees moved to Central and Northern Europe via the “Balkan Route”.
- In addition a sharp increase of migrants from Africa using the “Mediterranean route” was observed.
- Massive organized illegal immigration activities were taking place hitting mainly Greece and Italy..
- The European “migration crisis” developed.

The Migration Crisis of the European Union.







“Irregular migration“ 2013 – 2024: 8 millionen asylum seekers plus 6 millionen family members.

Migration from the Middle East and Asia.

- **Refugees from the Syria, Iraq, Afghanistan, Bangladesh:**

– Heavy fighting in Syria and Iraq (a.o. due to the rising of the Islamic State), ongoing terror attacks in Afghanistan.

– 5 million refugees in camps in Lebanon, Turkey often with inadequate supplies (Aug. 2015).

– Since 2012 refugees tried to reach Europe via Turkey/Greece/Hungary or Slovenia ("Balkan route") – massive wave in summer 2015, critical situations in Hungary, opening of the Austrian and German borders, huge trek of people entered the EU (many of them without any registration).

– In 2015 and 2016 more than 2 million asylum seekers used the Balkan route moving to their preferred final destination (mainly DE, SE and AT).

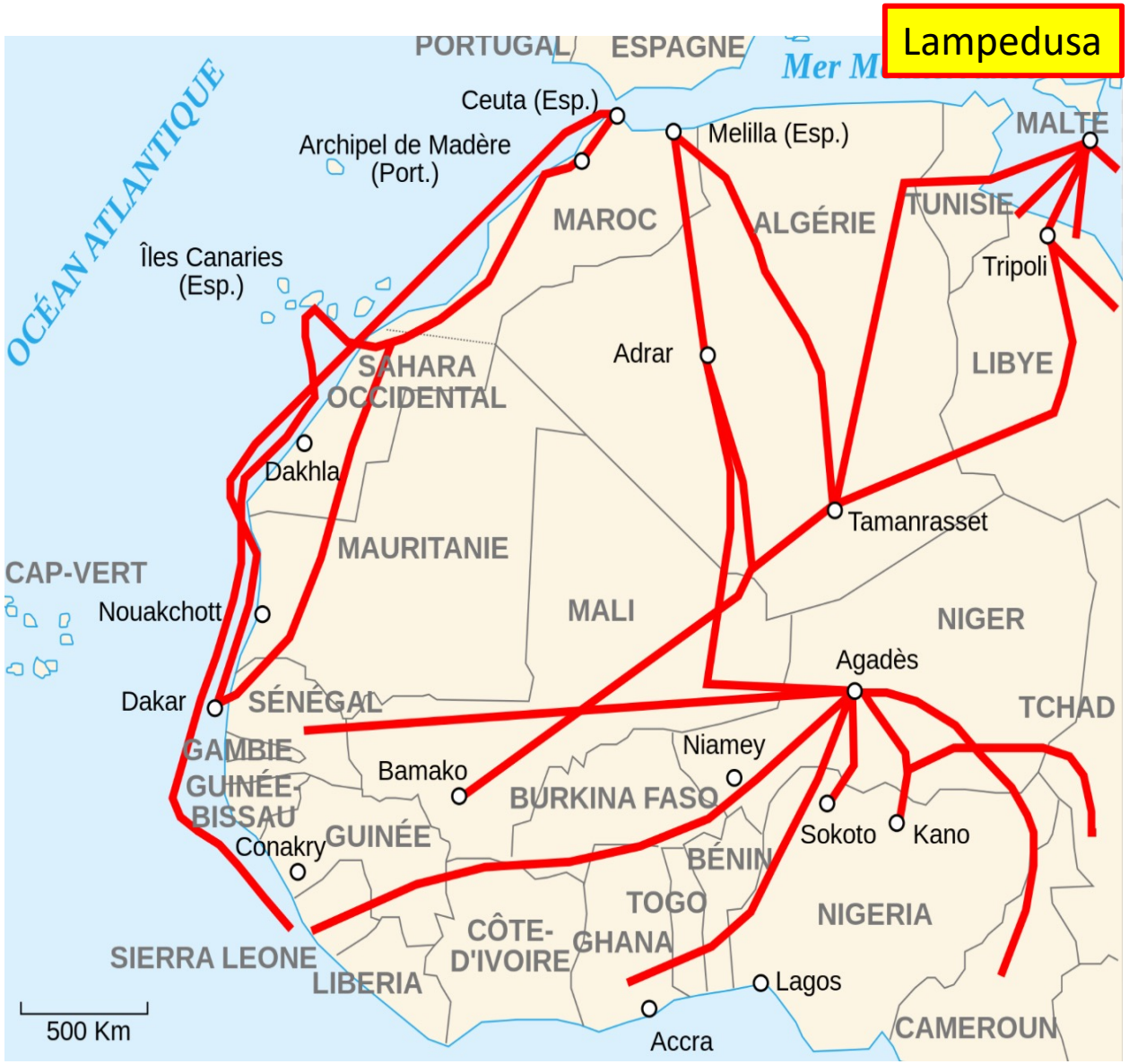
– From 2017 till 2021 the flow of refugees was significantly reduced due to agreement with Turkey, a closure of the "Balkan route", a gradual termination of the war in Syria and the Corona pandemic.

– After the Corona-crisis immigration from these regions has picked up again: 300.000 – 500.000 p.a from Middle East (Syria, Iraq, Tunesia) and Asia (Afghanistan and Bangladesh).

– Now hope for stabilisation of the situation in Syria under the new provisional government.

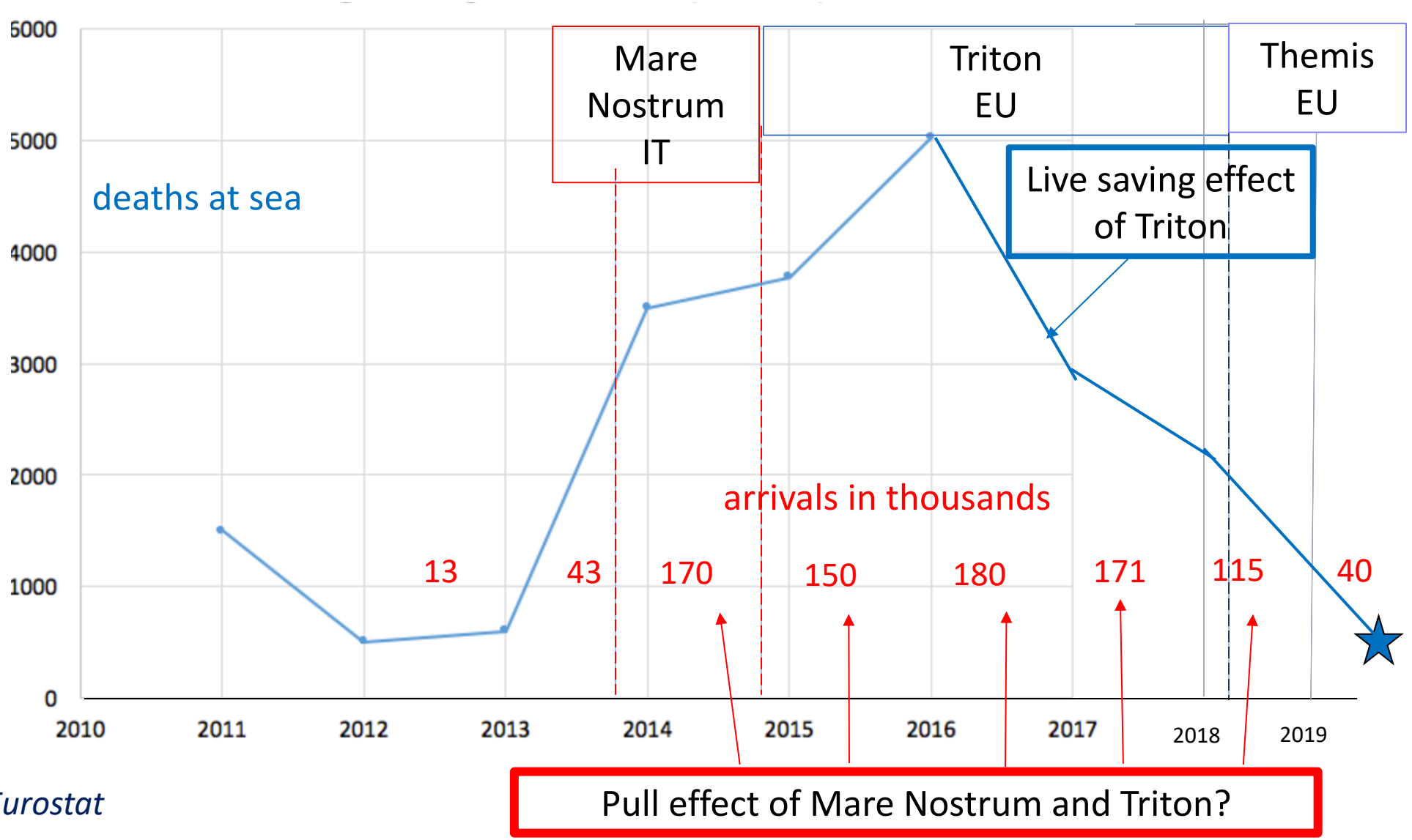
Source: European Union Asylum Agency, FRONTEX

Migration from Africa.



- **Mainly “economic migration”:**
  - After the collapse of the Gaddafi regime in Libya 2011 increasing stream of migrants from Libya across the Mediterranean Sea.
  - Social migrants primarily from Sub-Sahara region, plus a much smaller number of war refugees from Somalia, Eritrea.
  - Largely based on professional migrant smuggling on established routes through the Sahara and West Africa.
  - Transfer from Libya to Italy in unsafe vessels, mostly overloaded rubber/wooden boats: many people drowned.

Rescue Actions in Mediterranean Sea.



Source: Eurostat

Migration from Africa.

- **EU agreements with Libya (2018), Tunesia (2023), Egypt (2024):**
  - Agreements with these countries to control their coastal zones to stop migrants from leaving the country.
  - So far effect unclear – but the falling figures for migrants arriving in Europe from North Africa seem to indicate that there is some progress.
- **Resettlement agreements:**
- EU tries to achieve settlements with the countries of origin to take back rejected asylum seekers: so far very little progress.
- **The special problem of Italy:**
  - Lampedusa is the first arrival place for most migrants from Africa (most departures from Tunesia and Libya).
  - Many of the African migrants move on from Italy, esp. to DE, FR.
  - 150.000 new arrivals in 2022, 157.000 in 2023, 46.000 in 2024.
  - Peak of arrivals reached on 2 Sept. 2023: 112 boats with 5.000 migrants on one day.
  - Arrival camp in Lampedusa can hold 400 people.
  - Situation in Lampedusa had become unbearable.

Source: European Commission, FRONTEX

Migration from Africa.

- **Distribution of migrants arriving in Lampedusa:**

– Redistribution within Italy getting more and more difficult.

– Redistribution between EU countries refused by most countries due to a lack of agreement.

– Detention centers in Albania for 3.000 migrants where the asylum procedure should be carried out. Persons granted asylum should be distributed in EU Member States (on a quasi-voluntary basis). Persons rejected should be sent home. Start 2024. Italian Court rulings stopped the program.

- **The general problem with migrants from Africa:**

– The African migrants are largely considered as “economic refugees” by the national authorities granting asylum: acceptance rates < 10%.

– Nevertheless forced return to countries of origin nearly impossible.

– Voluntary returns very rare.

– A large number of Africans is living in EU without a real perspective.

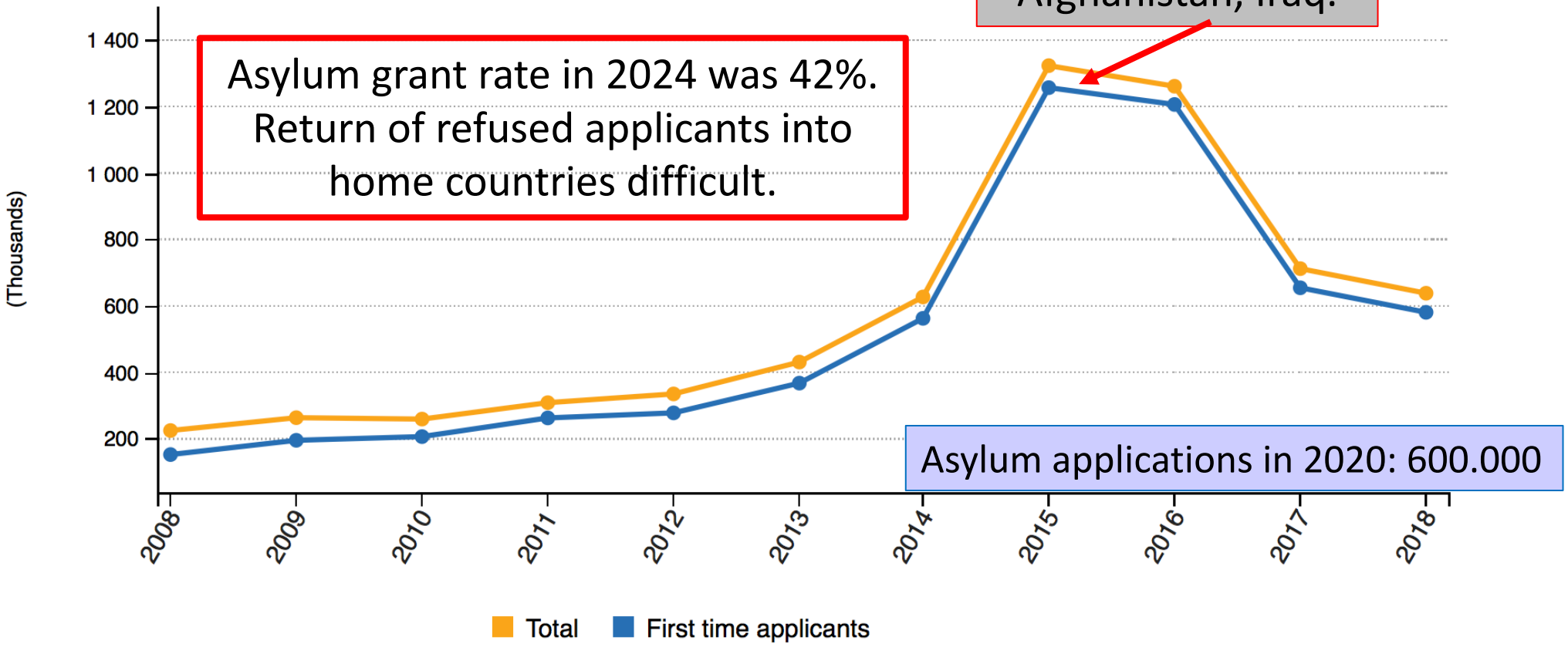
– 95% of the migrants are young males which were able to raise the costs for migration (ca 5.000 - 10.000 EUR per person).

Migration Trend into the EU.

Asylum applicants in EU-27 from 2013-2024:
8 million first time applicants.

40% from Syria, Afghanistan, Iraq.

Asylum grant rate in 2024 was 42%.
Return of refused applicants into home countries difficult.



Asylum applications in 2020: 600.000

The "Migration Crisis" is not finished and is causing a massive political division of the Member States.

Total number of asylum applications in EU:
966.000 in 2022, 1.13 million in 2023, 1.014.000 in 2024 (EUAA), 780.000 in 2025.

Source: EUROSTAT

The European ”Migration Crisis”.

- **Situation in 2024/2025:**
  - Migration slowed down only marginally compared to 2023 (due to agreements with Turkey and North African states to hold back migration?): 1.014.000 arrivals in 2024, 780.00 in 2025.
  - Due to the very different asylum procedures and social support in different Member States a very uneven distribution of asylum seekers still occurs.
- **Major target countries for immigrants:**
  - Number of asylum applications 2024 (EUAA): DE 237.000, France 167.000 (mainly Africans), Spain 165.800 (mostly South Americans), AT 25.000, DK 2.300, HU 29 (!).
  - Between 25 – 50% of these migrants receive asylum.
  - Rejected migrants usually refuse to return to their home country.
  - The European Court of Human Rights has made some exemplary decisions which make resettlement of a rejected asylum seeker very difficult.
  - Consequently they are usually granted residence status with social support.
  - Integration efforts for asylants and rejected migrants vary strongly from country to country, as well as the right for family reunions.

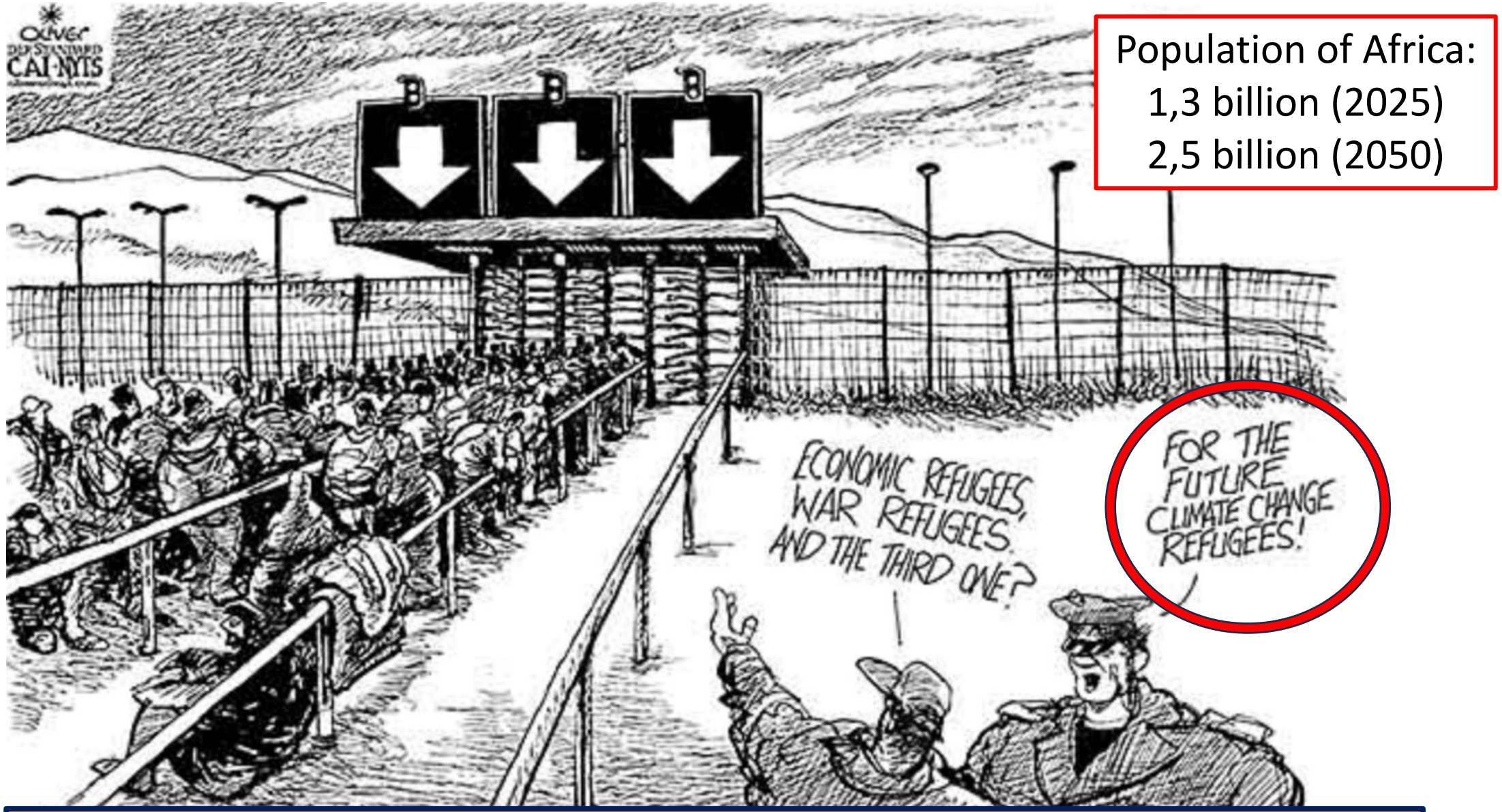
The European ”Migration Crisis”.

- **Integration of irregular migrants:**
  - Very tedious task – often lack of alphabetism and language skills, cultural differences, especially in respect to the rights of women, difficult integration into the work force.
  - Problems in schools and in general high costs for the host states.
  - Rather high criminality rate – individual attacks, gang formation, street fights, and even occasional terrorist attacks.
  - Development of migrant districts with their own laws (Paris, Brussels….)
  - Migrants often rejected by the natives, leading to social tensions and strengthening of the right-wing political parties.
- Nevertheless there is no alternative to integration of these migrants.
- Efforts of states and their institutions must be increased.
- The system must become more functional and efficient.

A Solution of the European ”Migration Crisis”?

- **The EU Pact on Migration and Asylum (2024, in effect 2026):**
- Seeks to regulate, harmonise and coordinate Member States' management of irregular arrivals.
- Rigorous entry control for migrants with handling of asylum process in the border country:
  - Mainly Greece, Bulgaria, Italy, Hungary, Spain.
  - Asylum process carried out there within 7 days.
  - Stations at these borders with a total capacity of 30.000 people foreseen.
- Distribution of applicants granted asylum across all EU Member States based on a fixed key with the option of a buy-out.
- Migrants who have not been granted asylum must stay in the arrival country and should be returning home within 2 months or detained in a third country (Albania, Ruanda, Uganda?).
- According to the European Court of Justice the home country must be safe in the whole territory! Syria? Afghanistan?
- Agreements with the origin countries of the migrants to take these back ?
- Set up channels for legal immigration with asylum or recognition process in the country of origin?
- The implementation of this concept will be very difficult, but it may have a certain deterrent effect on potential migrants.

The Future of Migration into the European Union?



Population of Africa:
1,3 billion (2025)
2,5 billion (2050)

The migration pressure could still become much higher.